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Case Number: 26STCV05589 Hearing Date: August 5, 2026 Dept: 408

Defendant Roy Joseph Urspruch's

Demurrer to Plaintiff Devin Barshay's Complaint is OVERRULED as to the tenth cause of action, and SUSTAINED, with leave to amend, as to the eleventh cause of action.

I.

BACKGROUND

On February 19, 2026, Plaintiff Devin Barshay ("Plaintiff") filed a complaint against Defendants Philips North America LLC ("Philips") and Roy Joseph Urspruch ("Urspruch", collectively "Defendants") alleging causes of action for:

1.

Discrimination

(Gov. Code, § 12940);

2.

Failure

to Prevent Discrimination (Gov. Code, § 12940);

3.

Failure

to Accommodate (Gov. Code, §§ 12926.1, 12940);

4.

Violation

of the California Family Rights Act (Gov. Code, § 12945.2);

5.

Retaliation

(Gov. Code, § 12940);

6.

Retaliation

in Violation of Labor Code section 1102.5;

7.

Wrongful

Termination;

8.

Failure

to Pay Earned Commission (Lab. Code, § 200);

9.

Waiting

Time Penalties (Lab. Code, §§ 201, 202 and 203);

10.

Defamation;

and

11.

Intentional

Infliction of Emotional Distress.

On May 15, 2026, Philips filed an
answer to Plaintiff's complaint.

On June 5, 2026, Urspruch filed
this Demurrer to Plaintiff's complaint. On July 23, 2026, Plaintiff filed an
opposition. On July 29, 2026, Urspruch filed a reply.

II.

LEGAL STANDARD

"The

party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pled or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

III.

DISCUSSION

Urspruch demurs to the tenth and eleventh causes of action alleged in Plaintiff's complaint pursuant to Code of Civil Procedure section 430.10, subdivision (e), on the grounds that Plaintiff fails to state sufficient facts to constitute such causes of action.

A.

Tenth Cause of Action

– Defamation

"The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5)

has a natural tendency to injure or causes special damage. The defamatory statement must specifically refer to, or be of and concerning, the plaintiff.” (John Doe 2 v. Superior Court (2016) 1 Cal.App.5th 1300, 1312 [quotation marks and citation omitted].)

Urspruch argues

that the tenth cause of action for defamation fails as the common interest privilege applies and Plaintiff fails to allege facts demonstrating actual malice to overcome that privilege. (Demurrer, at pp. 3-6.)

“Civil Code section 47½ provides in pertinent part that a publication or broadcast is privileged if made: (c) In a communication, without malice, to a person interested therein, (1) by one who is also interested, or (2) by one who stands in such a relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or (3) who is requested by the person interested to give the information.” (McGrory v. Applied Signal Technology, Inc. (2013) 212 Cal.App.4th 1510, 1538 [quotation omitted]; Civ. Code, § 47, subd. (c).) “This common interest privilege is not well-defined, but it has been determined to apply to statements by management and coworkers to other coworkers explaining why an employer disciplined an employee.” (Ibid.)

The defendant has the initial burden of showing the allegedly defamatory statement was made on a privileged occasion, then the burden shifts to the plaintiff to show the defendant made the statement with malice. (Lundquist v. Reusser (1994) 7 Cal.4th 1193, 1214.) “The malice necessary to defeat a qualified privilege is ‘actual malice’ which is established by a showing that the publication was motivated by hatred or ill will towards the plaintiff or by a showing that the defendant lacked reasonable grounds for belief in the truth of the publication and therefore acted in reckless disregard of the plaintiff’s rights.” (Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 935-936.)

The complaint alleges that Philips employed Plaintiff in December 2021 as an Imaging Account Manager assigned to a defined sales territory in Los Angeles. (Complaint, ¶ 11.) In January 2025, Plaintiff learned a new imaging center was opening within his assigned territory, but he had not been assigned to manage the account. (Id., ¶ 13.) Plaintiff subsequently discovered that Urspruch received an inside lead for the deal, but sent the lead to a San Diego representative, in violation of the territory sales commission agreement. (Ibid.)

Plaintiff complained to Urspruch and his supervisor, John Green ("Green"), regarding the purported wage theft. (Id., ¶¶ 13-14.) Green declined to change the assignment and informed Plaintiff he would not receive the commission. (Id., ¶ 14.) Within days, Plaintiff attended a meeting with Green and a Human Resources representative where Green asserted Plaintiff had performance deficiencies and placed Plaintiff on a 60-day Performance Improvement Plan ("PIP") despite Plaintiff having just received a positive performance review. (Id., ¶ 15.)

The complaint

further alleges that, on March 29, 2025, Urspruch sent an email to multiple supervisory and managerial employees of Philips, including individuals with authority over Plaintiff's discipline, compensation, and continued employment, stating that: Plaintiff was "working part time at best"; Plaintiff had "not done a presentation in two years"; Plaintiff had "not engaged in one MR meeting with David or the brothers"; Plaintiff "says whatever customers want to hear" to make a sale; and Plaintiff stated, "fuck leadership." (Id., ¶ 16.) Plaintiff alleges that Urspruch was attempting to have Plaintiff fired due to Plaintiff's complaints that Urspruch engaged in wage theft and diverted his commission to the San Diego sales representative. (Id., ¶ 17.) On April 1, 2025, Plaintiff went on a medical leave for anxiety and depression due to such events. (Id., ¶ 18.) However, Plaintiff was terminated while he was out on medical leave. (Ibid.)

In support of the tenth cause of action, the complaint alleges that Urspruch's statements were false and injured Plaintiff in his occupation as a sales representative for Philips. (Complaint, ¶¶ 92-93.) Plaintiff also alleges that Urspruch knew the statements were false and acted with reckless disregard for their truth or falsity as the statements concerned matters easily verifiable through company records, calendars, communications, and client activity. (Id., ¶ 96.)

Urspruch argues

that the statements at issue were in an internal email about Plaintiff's job performance which are classic workplace topics communicated to recipients that had a direct interest in the matter falling within the common interest privilege. (Motion, at pp. 4-5.) Moreover, Urspruch argues that Plaintiff's malice allegations are boilerplate assertions and factually unsupported which are insufficient to overcome the common interest privilege. (Id., at pp. 5-6.)

Even assuming, *arguendo*, that *Urspruch* demonstrates that the common interest privilege applies, the complaint alleges that *Urspruch* knew the statements were false and acted with reckless disregard for their truth or falsity, which qualifies as malice defeating the applicability of the privilege. (Complaint, ¶ 96; *Roemer*, *supra*, 44 Cal.App.3d at 935-936.) At the demurrer stage, the court treats the well-pleaded facts of the complaint as true, including that *Urspruch*'s statements were false and not based on reasonable grounds. As such, Plaintiff overcomes the common interest privilege.

Accordingly, the demurrer is overruled as to the tenth cause of action.

B.

Eleventh Cause of

Action – Intentional Infliction of Emotional Distress

"The elements of a *prima facie* case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Wilson v. Hynek* (2012) 207 Cal.App.4th 999, 1009 [citation and ellipses omitted].)

Urspruch argues

that Plaintiff failed to sufficiently allege extreme or outrageous conduct to support a claim for intentional infliction of emotional distress. (Demurrer, at pp. 6-7.) *Urspruch* also argues that the alleged conduct is privileged under the common interest doctrine for the same reasons stated above. (*Id.*, at p. 7.) Lastly, *Urspruch* contends that the emotional distress claim is barred by the Workers' Compensation Exclusivity Doctrine. (*Id.*, at pp. 7-9.)

In support of the

eleventh cause of action, the complaint alleges that *Urspruch* engaged in extreme and outrageous conduct by knowingly fabricating and publishing false

statements about Plaintiff's job performance and honesty to Plaintiff's supervisors for the purpose of causing Plaintiff disciplinary action and termination. (Complaint, ¶¶ 104-105.) The complaint further alleges that such conduct constituted a deliberate attempt to destroy Plaintiff's livelihood, employment, and professional reputation rather than a good-faith workplace complaint intended to cause Plaintiff emotional distress or with a reckless disregard of the probability of causing emotional distress. (Id., ¶¶ 106-107.)

The court finds that Plaintiff does not sufficiently allege extreme and outrageous conduct to support a claim for intentional infliction of emotional distress against Urspruch. The court finds that it does not need to address the common interest privilege at this time. While the court does not find that Plaintiff's emotional distress claim is barred by the Workers' Compensation Exclusivity Doctrine as the cause of action is asserted solely against Urspruch, an individual, based on his alleged defamatory conduct and not against Plaintiff's employer (Spratley v. Winchell Donut House, Inc. (1987) 188 Cal.App.3d 1408, 1411 ["Under workers' compensation an employer is liable for injuries to its employee arising out of and in the course of employment. (Lab. Code, § 3600.) Where the conditions of workers' compensation exist, the right to recover such compensation is the employee's exclusive remedy against the employer for such injuries."]), Plaintiff has failed to allege sufficient facts to support the claim.

Accordingly, the demurrer is sustained as to the eleventh cause of action with leave to amend.

IV.

CONCLUSION

Defendant Roy Joseph

Urspruch's Demurrer to Plaintiff Devin Barshay's Complaint is OVERRULED as to the tenth cause of action, and SUSTAINED, with leave to amend, as to the eleventh cause of action.